



CHAPTER 84.

An Act to amend the law relating to national health insurance as respects the period of the present emergency, and to amend the law relating to widows', orphans' and old age contributory pensions as respects that period and as respects provisions against double pensions.

[3rd September 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

PERSONS ENGAGED IN WAR OCCUPATIONS.

1.—(1) A person employed during the period of the present emergency in employment to which this section applies who, immediately before he became so employed, was insured or treated as insured under the Insurance Acts, or was to any extent insured within the meaning of the Pensions Acts, shall be treated as if he were employed within the meaning of the Insurance Acts.

Waroccupations outside the United Kingdom.

(2) Notwithstanding anything in the Insurance Acts, so long as a person is treated as an employed contributor by virtue of this section—

- (a) the employer's contribution payable under those Acts in respect of that person shall be at the

PART I.
—cont.

weekly rate of threepence in the case of a man and twopence-halfpenny in the case of a woman, and shall be payable at such times and in such manner as may be prescribed; and

- (b) no contribution shall be payable under those Acts by the person so treated as an employed contributor.

(3) The employment to which this section applies is employment outside the United Kingdom, Eire and the Isle of Man, by a person resident or having his principal place of business in the United Kingdom, in any war occupation prescribed for the purposes of this section, being employment which, if it were employment in the United Kingdom, would be employment within the meaning of the Insurance Acts.

Extension
of free and
extended
insurance
periods.

2.—(1) Where a person engaged in a war occupation prescribed for the purposes of this section, not being employment to which the foregoing section applies—

- (a) on becoming so engaged—

(i) became entitled to a free insurance period by virtue of section six of the Insurance Act or by virtue of that section as applied by regulations made under any provision of the Insurance Acts, or was so entitled to the remainder of a free insurance period then current; or

(ii) was entitled by virtue of section seven of the Insurance Act, or by virtue of that section as so applied, to the remainder of an extended insurance period then current; and

- (b) is engaged in any such war occupation at, or within such period as may be prescribed before, the time when the free insurance period or extended insurance period would but for this section expire; and

(c) pays, at such times and in such manner as may be prescribed, in respect of the period for which he is engaged in any such war occupation—

(i) contributions for the purpose of the Insurance Acts at the weekly rate of three-

pence in the case of a man and twopence half-penny in the case of a woman; and

(ii) except in the case of a person insured separately as a voluntary contributor for purposes relating to health (whether or not he is also so insured for purposes relating to pensions), the contributions which would have been payable for the purpose of the Pensions Acts by his employer and by himself if he had been employed within the meaning of the Insurance Acts for the period for which he is so engaged;

the free insurance period or extended insurance period shall, subject to such modifications of the Insurance Acts as may be prescribed, be extended until the expiration of such period from the date when he ceases to be so engaged as may be prescribed.

(2) The Minister may by regulations modify the provisions of subsection (2) of section seven of the Insurance Act in their application to persons who during an extended insurance period become engaged in any war occupation prescribed for the purposes of this section, so as to enable them to become entitled to sickness or disablement benefit in such circumstances and subject to such conditions as may be prescribed.

3. Where contributions for the purpose of the Insurance Acts are paid in accordance with the provisions of the two foregoing sections by or in respect of a member of an approved society, there shall be credited to his society a sum equal to sixpence for each weekly contribution paid, and an equal sum shall be treated for the purpose of section twelve of the Insurance Act as having been expended on benefits.

Grants to
approved
societies.

4. Subject to such conditions (including conditions as to the payment of contributions) as may be prescribed, any person who—

Prolonga-
tion of
pensions
insurance of
certain
con-
tributors.

(a) becomes engaged, during the period of the present emergency, in any war occupation prescribed by the Minister for the purpose of section two of this Act or of this section; and

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—cont.

- (b) was, immediately before he became so engaged, insured within the meaning of the Pensions Acts, otherwise than as a person insured, or treated as insured, under the Insurance Acts; and
- (c) is not, while so engaged, insured within the meaning of the Pensions Acts as a person insured, or treated as insured, under the Insurance Acts;

shall remain insured within the meaning of the Pensions Acts to the extent to which he was insured immediately before he became so engaged until the expiration of whichever of the following periods last expires, namely,—

- (i) such period from the date on which he ceases to be so engaged as may be prescribed; or
- (ii) the period at the end of which he would, but for this section, have ceased to be insured within the meaning of the Pensions Acts.

Modifica-
tion of
Pensions
Acts.

5. The Pensions Acts shall have effect, in their application to persons insured thereunder by virtue of the foregoing provisions of this Part of this Act, subject to such modifications as may be prescribed.

PART II.

NATIONAL HEALTH INSURANCE.

Postpone-
ment of
sickness and
disablement
benefit in
cases of war
injury.
2 & 3 Geo. 6.
c. 82.
2 & 3 Geo. 6.
c. 83.

6.—(1) Where an insured person is rendered incapable of work by reason of—

- (a) an injury in respect of which payment may be made under a scheme made by virtue of the Personal Injuries (Emergency Provisions) Act, 1939, or the Pensions (Navy, Army, Air Force and Mercantile Marine) Act, 1939; or
- (b) an injury in respect of which payment might be made under such a scheme but for a provision of the scheme precluding the making of payments in cases where the incapacity caused by the injury lasts for less than a period specified in the scheme; or
- (c) an injury sustained in the course of, or aggravated by, service in the naval, military or air forces

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—cont.

of the Crown or in the nursing service or other auxiliary service of any of the said forces, being an injury in respect of which the insured person is in receipt of a pension or grant under any Order in Council or other instrument; or

- (d) a disease attributable to or aggravated by such service as is mentioned in the last foregoing paragraph, being a disease in respect of which the insured person is in receipt of any such pension or grant as aforesaid;

no sickness or disablement benefit shall be payable to the insured person in respect of that injury or disease for any period before the expiration of twenty-six weeks beginning—

- (i) in the case of an injury, with the Monday next before the date on which he sustained the injury; or

- (ii) in the case of a disease, with the Monday next before the date of his first removal from duty by reason of the disease.

(2) Where, for the purpose of any such scheme as is mentioned in paragraph (a) of the last foregoing subsection, a decision has been made by the Minister of Pensions that any injury is or is not an injury in respect of which a payment may be made under the scheme—

- (a) that decision shall be final and conclusive for the purposes of the Insurance Acts and of this section; and

- (b) notwithstanding anything in section one hundred and sixty-three of the Insurance Act, any decision of an approved society or branch thereof, an arbitrator, an insurance committee, the Minister or a referee, relating to the right of the injured person to receive sickness or disablement benefit which is inconsistent with the decision of the Minister of Pensions shall be revised so as to accord therewith, and shall have effect as revised as from the date on which the original decision took effect:

Provided that—

- (i) where the Minister of Pensions has during any period made an allowance or other payment

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—cont.

to any person on the footing that that person was rendered incapable of work during that period by reason of an injury in respect of which a payment may be made under any such scheme, that person shall, notwithstanding any subsequent decision of the said Minister, be treated for the purposes of the Insurance Acts and this section as having been so rendered incapable during that period; and

- (ii) where sickness or disablement benefit has been paid to any person during any period on the footing that he was rendered incapable of work otherwise than by reason of such an injury as aforesaid, he shall, notwithstanding any subsequent decision of the Minister of Pensions, be deemed, for the purpose of section seventy-one of the Insurance Act (which relates to the repayment of benefits improperly paid), to have been lawfully entitled thereto.

Modification
of rights to
benefit of
persons in
receipt of
disability
pensions
and injury
allowances.

7.—(1) Subject to the provisions of this section—

- (a) for any period after the expiration of the twenty-six weeks mentioned in subsection (1) of the last foregoing section in respect of which a person is in receipt of a pension in respect of disablement in the highest degree or an injury allowance, the rate of any sickness benefit to which he would otherwise be entitled in respect of his insurance under the Insurance Acts shall be reduced by one-half, and no disablement benefit shall be payable to him; and
- (b) for any period after the expiration of the said twenty-six weeks in respect of which a person is in receipt of a pension in respect of disablement in a lesser degree, the rate of any sickness or disablement benefit to which he would otherwise be so entitled shall be reduced by the amount, if any, by which—

(i) the aggregate amount of the benefit to which he would be so entitled and of the pension for that period exceeds

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PART II.
—cont.

(ii) the aggregate amount of the pension and benefit which he would have received for that period if his disablement had been in the highest degree.

(2) A person shall not be subject or shall cease to be subject to the provisions of the foregoing subsection—

(a) as respects sickness benefit, if he proves that since the appropriate date he has been employed within the meaning of the Insurance Acts or been engaged in some regular occupation during twenty-six weeks, whether consecutive or not, and that twenty-six weekly contributions have been paid in respect of him; or

(b) as respects disablement benefit, if he proves that since the appropriate date he has been so employed or engaged during one hundred and four weeks, whether consecutive or not, and that one hundred and four weekly contributions have been paid in respect of him :

Provided that, for the purpose of this subsection, a person shall not be deemed to have been employed or engaged as aforesaid in any week unless he proves that the remuneration received in respect of the employment or regular occupation was such as to provide a substantial contribution towards his means of livelihood in that week.

(3) Where sickness or disablement benefit is paid to any person for any period and he subsequently receives a pension or injury allowance in respect of that period—

(a) the society, committee or other body by which the benefit was paid shall be deemed to have advanced to him—

(i) in a case where, by virtue of this section, the benefit would not have been payable if he had been in receipt of the pension or allowance at the commencement of that period, the amount of the benefit paid;

(ii) in any other case, the amount of the difference between the benefit paid and the benefit which would have been payable as aforesaid; and

PART II.
—cont.

(b) the amount so deemed to be advanced, without prejudice to any other method of recovery—

(i) shall be recovered by deductions from or suspension of any sickness or disablement benefit which may subsequently become payable to him; or

(ii) if the authority or department by whom the pension or injury allowance is administered think fit, may be repaid by that authority or department out of any arrears in their hands of the pension or injury allowance.

(4) In calculating for the purposes of the Insurance Acts arrears of contributions payable in respect of any person, no account shall be taken of any arrears accruing during any period for which he has been subject to the provisions of paragraph (a) of subsection (1) of this section.

(5) For the purposes of this section—

(a) the expression “pension” means—

(i) a pension paid under a scheme made by virtue of the Personal Injuries (Emergency Provisions) Act, 1939, or the Pensions (Navy, Army, Air Force and Mercantile Marine) Act, 1939; or

(ii) a pension or retired pay paid under any Order in Council or other instrument either in respect of an injury sustained or aggravated during the period of the present emergency in the course of, or by, service in the naval, military or air forces of the Crown or in the nursing service or other auxiliary service of any of the said forces, or in respect of a disease attributable to or aggravated by such service;

(b) the expression “injury allowance” has the same meaning as in the Personal Injuries (Emergency Provisions) Act, 1939;

(c) an allowance in lieu of pension to a person undergoing a special course of medical treatment, or undergoing treatment in an institution, or receiving training in a technical institution or otherwise, shall be treated as

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(Emergency Provisions) Act, 1939.*

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—cont.

if the allowance were a pension in respect of disablement in the highest degree;

(d) in calculating the amount of a pension or injury allowance, no account shall be taken of any sum payable in respect of any dependant of the person in receipt thereof;

(e) the expression "appropriate date" means—

(i) in relation to a person in receipt of a pension or retired pay under any such Order in Council or other instrument as is mentioned in sub-paragraph (ii) of paragraph (a) of this subsection, the date on which he ceased to serve on full pay in the service in the course of which he was disabled; and

(ii) in relation to any other person, the date on which he sustained the injury in respect of which the pension or injury allowance in question was awarded.

8.—(1) Section one hundred and thirty-four of the Insurance Act (which applies the provisions of that Act relating to men of the forces to men of the reserve and other forces mentioned in paragraph (a) thereof) shall have effect as if the following paragraph were inserted immediately after the said paragraph (a)—

Extension
of s. 134 of
principal
Act.

"(aa) subject to such adaptations, modifications or conditions as may be prescribed, apply to men serving during the period of the present emergency in such other naval, military or air forces of the Crown as may be prescribed, and to persons employed during that period in such nursing or other auxiliary service of any of the naval, military or air forces of the Crown as may be prescribed."

(2) A person insured by virtue of the provisions of the Insurance Act which are applied by the said section one hundred and thirty-four as amended by this section shall not be insured by virtue of any other provision of the Insurance Acts.

9. In reckoning for the purpose of section one hundred and twenty-six of the Insurance Act (which relates to married women ceasing to be persons whose

Provision as
to married
women

PART II.
—cont.
engaged in
war
occupations.

normal occupation is employment within the meaning of the Act)—

- (a) the period of twelve months first mentioned in subsection (1) of that section; or
- (b) the period of eight consecutive weeks mentioned in subsection (2) of that section;

no account shall be taken of any period during which a woman is engaged—

- (i) in a war occupation prescribed for the purposes of section one or section two of this Act; or
- (ii) in any nursing or other auxiliary service of any of the naval, military or air forces of the Crown prescribed under paragraph (aa) of subsection (1) of section one hundred and thirty-four of the Insurance Act as amended by the last foregoing section.

Payment of
benefit
without
proof of
compliance
with
statutory
conditions.

10. Regulations of the Minister may authorise the payment, during the period of the present emergency and subject to such conditions as may be prescribed, of any benefit under the Insurance Acts without the question being determined whether the statutory conditions governing the right to that benefit have been complied with, in cases where it is impracticable to determine that question by reason of circumstances arising out of the existence of a state of war.

Suspension of
right to certi-
ficates of
exemption.

11. During the period of the present emergency no certificate of exemption shall be granted under section five of the Insurance Act otherwise than by way of renewal of a certificate granted before the commencement of that period.

Meetings of
approved
societies.

12.—(1) The committee of management of any approved society may dispense with the holding of any meeting of members or delegates required by the rules of the society to be held during the period of the present emergency, if satisfied that it is inexpedient to hold the meeting having regard to the number of persons likely to assemble thereat.

(2) Where a meeting is so dispensed with by a committee of management—

- (a) any officers or members of the committee who would otherwise have gone out of office shall

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continue in office until the next meeting at which they can be appointed or reappointed is held, as if they had been duly appointed or reappointed in accordance with the rules of the society; and

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—cont.

- (b) the committee may, until such a meeting is held, exercise and perform any of the powers and duties which might have been exercised and performed by the meeting the holding of which was dispensed with.

(3) In this section the expression "committee of management" includes any other governing body of an approved society.

13. During the period of the present emergency, notwithstanding anything in section eighty-nine of the Insurance Act, no person shall be entitled to terminate his membership of any approved society or branch thereof.

Suspension
of right to
terminate
membership
of approved
society.

PART III.

CONTRIBUTORY PENSIONS.

14.—(1) In relation to persons to or in respect of whom any dependants war pension is payable, the provisions of the Pensions Acts shall have effect subject to the following modifications.

Provision
against
double
pensions.

(2) Where, apart from the provisions of this subsection, both a dependants war pension and a widow's pension, additional allowance or orphan's pension under the Pensions Acts would be payable in respect of the death of the same person—

- (a) the widow's pension, additional allowance or orphan's pension shall not be payable; and
(b) where the amount of the dependants war pension is less than the amount of the pension, including additional allowance (if any), which would but for the provisions of this subsection have been payable under the Pensions Acts, there shall be payable out of the Pensions Account or Special Pensions Account to the dependants war pension

PART III.
—cont.

authority a sum equal to the difference between the last-mentioned and the first-mentioned amount, and thereupon the dependants war pension shall be increased by that sum.

For the purposes of this subsection, where dependants war pensions are payable to or in respect of a widow and her children, the amount of the dependants war pension payable to the widow shall be treated as including the pensions payable in respect of her children.

(3) Where a person to or in respect of whom a dependants war pension (not being a pension in respect of the service of the pensioner's son or stepson) is payable becomes entitled to an old age pension under the Pensions Acts, the old age pension shall, notwithstanding the provisions of subsection (4) of section twenty-five of the Pensions Act, be payable at the following rate, that is to say—

- (a) at the rate of two shillings per week, together with an additional amount of one shilling per week for each complete period of five years which, on the date on which the person by virtue of whose insurance the pension is payable attained the age of sixty-five years, has elapsed since the thirty-first day of December, nineteen hundred and thirty-four, so however that the additional amount shall not in any case exceed eight shillings; or
- (b) at such rate, if any, as may be necessary to ensure that the aggregate of the weekly rate of the dependants war pension and the old age pension shall not be less than the rate of old age pension which would have been payable but for the provisions of this section;

whichever is the greater.

For the purposes of this subsection, where a dependants war pension is payable to or in respect of a person being one of a married couple living together in the same house, the husband and wife shall each be treated as in receipt of a pension of half the amount of the dependants war pension.

(4) Subsections (2) and (3) of section five of the Widows', Orphans' and Old Age Contributory Pensions

(Voluntary Contributors) Act, 1937, and the Third and Fourth Schedules thereto, and those subsections and Schedules as modified under subsection (2) of section ten of that Act, shall have effect, in relation to pensions payable in accordance with the provisions of the last foregoing subsection, subject to such modifications as may be prescribed.

(5) Regulations may be made by the Minister and the dependants war pension authority concerned for excluding from the foregoing provisions of this section such dependants war pensions as may be prescribed, being pensions calculated with reference to the necessities of the pensioner, and such regulations may make special provision with reference to the administration of pensions under the Pensions Acts payable in the case of persons entitled to such excluded pensions.

(6) In this section the expression “dependants war pension” means any pension or allowance payable out of moneys provided by Parliament at weekly or other periodical intervals to any person—

- (a) in respect of the death of some other person attributable to or connected with the service of that other person in the naval, military or air forces of the Crown; or
- (b) after the death of some other person in continuation of any payments made during the lifetime of that person in respect of his service in any of the said forces; or
- (c) in respect of the death of some other person attributable to or connected with the service of that other person during the late war; or
- (d) in respect of the death of some other person, under a scheme made by virtue of the Injuries in War (Compensation) Act, 1914, the Injuries in War Compensation Act, 1914 (Session 2), the Pensions (Navy, Army, Air Force and Mercantile Marine) Act, 1939, or the Personal Injuries (Emergency Provisions) Act, 1939;

4 & 5 Geo. 5.
c. 30.
5 & 6 Geo. 5.
c. 18.

and the expression “dependants war pension authority” means, in relation to a dependants war pension, the authority or department by whom the pension is administered.

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PART III.
—cont.

(7) The provisions of this section shall have effect in substitution for the provisions of subsection (1) of section twenty-five of the Pensions Act, and accordingly—

- (a) that subsection and the expressions “service dependants pension” and “service pension authority” in subsection (1) of section forty-two of the Pensions Act are hereby repealed; and
- (b) any reference in any enactment to section twenty-five of that Act or to the provisions of that Act relating to service dependants pensions shall be construed as including a reference to this section; and
- (c) any reference in any enactment to a service dependants pension within the meaning of that Act shall be construed as a reference to a dependants war pension within the meaning of this section.

Provisional awards of pensions.

15.—(1) Where a claim for a pension is made under the Pensions Acts, and it appears to the Minister that, by reason of circumstances arising out of the existence of a state of war, it is impracticable to determine the question whether the statutory conditions have been complied with in relation to the claim, the Minister may make a provisional award of a pension without determining that question.

(2) Where, after a provisional award has been made under this section, new facts are brought to the notice of the Minister which in his opinion render it practicable to determine the question aforesaid, the Minister shall determine that question and may revise the provisional award accordingly.

(3) Where a provisional award is revised under this section the revised award shall take effect as from the date on which the provisional award took effect.

PART IV.

GENERAL.

Expenditure.

16. There shall be defrayed out of moneys provided by Parliament any increase resulting from the operation of this Act in expenditure which is authorised to be so defrayed under or by virtue of the Insurance Acts, the Pensions Acts or the Old Age Pensions Act, 1936.

26 Geo. 5. &
1 Edw. 8.
c. 31.

17. In this Act the following expressions have the meanings hereby respectively assigned to them :—

PART IV.
—cont.
Interpreta-
tion.
26 Geo. 5. &
1 Edw. 8.
c. 32.

“ Insurance Act ” means the National Health Insurance Act, 1936, as amended by any subsequent enactment;

“ Insurance Acts ” means the National Health Insurance Acts, 1936 to 1938;

“ Pensions Act ” means the Widows’, Orphans’ and Old Age Contributory Pensions Act, 1936, as amended by any subsequent enactment;

“ Pensions Acts ” means the Widows’, Orphans’ and Old Age Contributory Pensions Acts, 1936 and 1937;

“ period of the present emergency ” means the period beginning with the commencement of this Act and ending with such date as His Majesty may by order in Council declare to be the date on which the emergency that was the occasion of the passing of this Act came to an end;

“ war occupation ” means an occupation followed during the period of the present emergency in connection with the defence of the realm, the prosecution of the war, or the maintenance of essential supplies or services, not being employment within the meaning of the Insurance Acts.

18.—(1) It is hereby declared that this Act extends to Northern Ireland.

Applica-
tion to
Northern
Ireland.

(2) In the application of this Act to Northern Ireland the following modifications shall be made—

(a) references to the Insurance Act shall be construed as references to that Act as it applies in Northern Ireland under and subject to the provisions of Part X thereof, and as amended by any subsequent Act of the Parliament of Northern Ireland;

(b) references to the Insurance Acts shall be construed as references to the National Health Insurance Acts (Northern Ireland), 1936 to 1938;

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—cont.

- (c) references to the Pension Acts and to section forty-two thereof shall respectively be construed as references to the Widows', Orphans' and Old Age Contributory Pensions Act (Northern Ireland), 1936, passed by the Parliament of Northern Ireland, as amended by any subsequent enactment of that Parliament, and to section forty-three thereof;
- (d) references to the Pensions Acts shall be construed as references to the Widows', Orphans' and Old Age Contributory Pensions Acts (Northern Ireland), 1936 and 1937;
- (e) the reference to the Widows', Orphans' and Old Age Contributory Pensions (Voluntary Contributors) Act, 1937, shall be construed as a reference to the Widows', Orphans' and Old Age Contributory Pensions (Voluntary Contributors) Act (Northern Ireland), 1937, passed by the Parliament of Northern Ireland;
- (f) references to the Minister shall be construed as references to the Ministry of Labour for Northern Ireland;
- (g) sections three and sixteen shall not apply, but notwithstanding anything in the Government of Ireland Act, 1920, the Parliament of Northern Ireland shall have power to make laws for purposes similar to the purposes of those sections.

10 & 11
Geo. 5. c. 67.

Short title,
construc-
tion,
citation and
commence-
ment.

19.—(1) This Act may be cited as the National Health Insurance and Contributory Pensions (Emergency Provisions) Act, 1939.

(2) Part II of this Act and so much of Part I thereof as relates to insurance under the Insurance Acts—

- (a) in its application to England, Scotland and Wales, shall be construed as one with the National Health Insurance Acts, 1936 to 1938, and may be cited together with those Acts as the National Health Insurance Acts, 1936 to 1939; and
- (b) in its application to Northern Ireland, shall be construed as one with the National Health Insur-

ance Acts (Northern Ireland), 1936 to 1938, and may be cited together with those Acts as the National Health Insurance Acts (Northern Ireland), 1936 to 1939.

PART IV.
—cont.

(3) Part III of this Act and so much of Part I thereof as relates to insurance within the meaning of the Pensions Acts—

(a) in its application to England, Scotland and Wales, shall be construed as one with the Widows', Orphans' and Old Age Contributory Pensions Acts, 1936 and 1937, and may be cited together with those Acts as the Widows', Orphans' and Old Age Contributory Pensions Acts, 1936 to 1939; and

(b) in its application to Northern Ireland, shall be construed as one with the Widows', Orphans' and Old Age Contributory Pensions Acts (Northern Ireland), 1936 and 1937, and may be cited together with those Acts as the Widows', Orphans' and Old Age Contributory Pensions Acts (Northern Ireland), 1936 to 1939.

(4) This Act shall come into operation, or shall be deemed to have come into operation, on such day as His Majesty may by Order in Council appoint .

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FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
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